INTERNET LAW

LAW 575 · Spring 2027 · Wake Forest University School of Law

Professor Raina Haque · haquer@wfu.edu · Office phone 336-758-5720

Class meetings: Mondays and Wednesdays, 1:15-2:40 pm, Room 1310. No class Monday, January 18, or during spring break, March 8-12. Office hours: by appointment, Tuesdays and Fridays, 9:00-10:00 am, Worrell 3313; book a time through my office-hours calendar. Administrative matters: Becky Poore, lawfs@wfu.edu. Tech help: lawhelp@wfu.edu.

WHAT PASSING REQUIRES

This course is graded under the Law School's Pass/Fail Grading Policy (Student Handbook, Chapter 10). Under that policy, the available grades are Honors Pass (H), Pass (P), Low Pass (LP), and Fail (F), as defined in the Handbook. There is no curve, no mandatory mean, and no final exam. You pass by meeting all five requirements below; you earn Honors Pass for the course by earning Honors Pass on participation, the SIAR block, and the portfolio.

- **Attendance (met or not met).** Attend at least 22 of our 26 sessions under the attendance policy below.
- **Participation (Pass or Honors Pass).** The syllabus quiz, the Tech Digest Project, and annotation sets, each checked for completion. Pass: 17 of the 21 annotation sets, the Tech Digest complete, and the syllabus quiz completed at 100 percent. Honors Pass: all 21 sets and no more than one late item (see Deadlines and late work). Leaving the Tech Digest incomplete, or not completing the syllabus quiz, means the requirement is not met.
- **SIAR block (Pass or Honors Pass).** The Session 6 prep set and practice problems, and the Session 8 quiz (one complete attempt at Part A, and Part B). Pass: all three completed in good faith. Honors Pass: the top level of the three-level rubric on Part B, published with the SIAR Module before the semester begins.
- **Portfolio (Pass or Honors Pass).** Your memo and your circle work (your draft and your letters): one memo on the unit whose circle you join by the Session 6 sign-up, meeting the rubric; one cure cycle. Your draft and your letters must be posted by the close, at 1:15 pm on the unit's memo date; if either is missing at the close, the portfolio is not met, which is a Fail. Pass: meets the rubric. Honors Pass: see the Circle Guide.
- **Citation integrity (clear or violation).** No unresolved citation-integrity violation; a violation blocks a pass.

Course Overview

This course examines the law governing the internet and digital technologies, and how traditional doctrines adapt, or fail to adapt, to networked computing. We begin with how computers and the internet work and whether cyberspace is a separate place, then ask how nations enforce their laws across a borderless network. A three-session block then teaches how government makes internet law: statutes, agency rules and enforcement, and judicial review, worked through the FTC's rule protecting children's privacy online and its enforcement action against Epic Games. We then cover content moderation and Section 230; consumer privacy and the GDPR; federalism and the dormant Commerce Clause; platform regulation, including marketplaces, antitrust, and network neutrality; and emerging issues in defective software, virtual property, and blockchain.

Student Learning Outcomes

At the successful completion of this course, students will be able to:

- Apply statutes, as well as relevant sources promulgated by administrative agencies, to legal problems (assessed by the SIAR quiz).

- Analyze internet law problems by applying relevant doctrine to novel fact patterns (assessed by hypothetical brief: the portfolio memo).
- Communicate legal analysis of technology issues (assessed by hypothetical brief: the portfolio memo).

Statutory Interpretation and Agency Regulation Requirement (SIAR requirement)

This course satisfies both prongs of the requirement: (a) interpreting and applying statutes, and (b) how agencies implement statutes through regulation and enforcement. Every student completes one graded exercise covering both, Part B of the SIAR quiz. In Session 6, students work through an interactive module on how statutes are enacted, how agencies promulgate rules and adjudicate enforcement actions under them, and how courts review agency action, completing required practice problems. Before Session 6, students read the Children's Online Privacy Protection Act and the Federal Trade Commission's rule implementing it, and in Session 7 the Commission's enforcement action against Epic Games. In Session 8, every student completes the SIAR quiz: a set of required practice items, attempted at least once and retakeable as often as needed before the block closes, and a written problem that requires interpreting a statute together with an agency's implementing rule. Each student's written problem is assessed on a three-level rubric and the level is reported.

Materials and Course Documents

Required text and technology. James Grimmelmann, Internet Law: Cases and Problems (16th ed., Semaphore Press, 2026), digital ($30 suggested, semaphorepress.com); annotation sets are posted in Hypothesis on the course's excerpts of the text, one per reading session (Sessions 1 and 2 share the first), opened from Canvas; the digital edition is the assigned text, and print is optional. Hypothesis (free), Google Docs, and Canvas. Session 18's federalism module is posted on Canvas, as is the Session 6 COPPA packet. Canvas mirrors this syllabus week by week: each module holds its sessions, and each assignment sits in the module for the week it is due. The syllabus quiz, retakeable until every answer is right, is due by 11:59 pm on Sunday, January 17, a week before the drop period ends; completing it at 100 percent is part of the participation requirement. If it is not in the syllabus or on Canvas, it is not due.

Credit hours and workload. This is a three-credit course. Consistent with ABA Standard 310, plan on about two hours of work outside class for every hour in class: roughly six hours a week across reading, annotation sets, the Tech Digest, the SIAR module, and the portfolio memo.

This syllabus is the master document; where documents differ, it controls. The details of each assignment live in the companion documents listed under Course documents at the end; all of them are linked from the course website and on Canvas.

Document versions. Every course document carries its version in the footer, a DOCUMENT HISTORY, and a list of items still open. Corrections raise the minor number (v3.1); changes to policies, assessments, or grading raise the major number (v4.0) and are announced on Canvas. Once the semester begins, the assessment scheme and the grading policy do not change; versions issued during the semester are corrections and clarifications.

Assignments

The SIAR block (Sessions 6–8). Session 6: before class, read the COPPA packet on Canvas and submit the SIAR prep set by 1:15 pm, four one-line notes as an individual Canvas annotation (see the SIAR Module); in class, you work the administrative-law module and its practice problems, finishing at home by the start of Session 8 if needed; after that they are a late item, and the block closes at the start of Session 9. Session 7: children's privacy; read the assigned pages before class, with the packet in hand. Session 8: the SIAR quiz, on Canvas, in two parts. Part A is required practice: one complete attempt, at any score, is required, you may take it as many times as you like, and it closes with Part B. Part B is a written problem, started in class with the full period available; you may keep working outside class, and both parts close at the beginning

of Session 9. If you are absent that day, tell me as soon as you can, beforehand if you know, and take both parts on your own before they close. Part B is open notes. You may not collaborate, and you may not use generative AI on either part; ordinary spelling and grammar checking is fine. Answer in ordinary legal language rather than the module's mechanical vocabulary: translating the machine back into law is what the problem tests.

The portfolio. You write one client memo on one of the four portfolio problems, each workshopped in a circle of three or four students writing the same problem. Every student signs up for one circle; each circle is capped, and seats fill first come, first served. Sign-up closes at the start of class on Monday, February 1 (Session 6). Caps and opening time are posted on Canvas beforehand; whoever misses sign-up is placed at my discretion. You draft after your unit's problem is discussed in class; drafts, letters, and memos are each due at the start of class on the dates below. Memos are read against a published rubric, met or not met, with one cure cycle. The Circle Guide has every step. Your memo runs 1,000-1,500 words of body text; the coversheet, headings, citations, and the acknowledgment and certification page do not count. Citations follow the Bluebook. A unit's assigned pages are the pages assigned from Grimmelmann for the sessions in that unit, and they are the memo's whole universe of authority.

Unit	Problem	Discussed in class	Drafts due	Letters due	Memo due
2 · Jurisdiction	**SeaHaven**	Wed., Jan. 27	Wed., Feb. 24	Mon., Mar. 1	Wed., Mar. 17
3 · Content Moderation	**CurrenC**	Wed., Feb. 10	Wed., Mar. 17	Mon., Mar. 22	Mon., Apr. 5
4 · Privacy	**Cookie Monster**	Mon., Mar. 15	Wed., Mar. 24	Mon., Mar. 29	Mon., Apr. 12
5 · Platform Regulation	**5thWheel**	Wed., Mar. 24	Wed., Apr. 7	Mon., Apr. 12	Mon., Apr. 19

Annotations and the Tech Digest. Before each session with assigned reading, post an annotation set in Hypothesis (four margin notes; see the Annotation Guide); Session 6's packet takes the SIAR prep set instead. The first set, due Wednesday, January 13, covers Sessions 1 and 2 and is also the Tech Digest's first component, so one posting satisfies both; seventeen of the twenty-one sets are required. The first set is required of everyone and is not one of the four you may skip: posted late, it counts until 1:15 pm on Wednesday, January 20 (Session 3); if you add the course after January 13, it is due by 1:15 pm on Monday, January 25, and is not late, in place of the one-week rule below. The Tech Digest Project runs from the first session to the reflection due February 1; both are checked for completion and good faith.

Deadlines and late work. Deadlines are firm, to the minute shown in Canvas. Completion-checked work (the syllabus quiz, annotation sets, Tech Digest components, the SIAR prep set and practice problems, circle drafts, and circle letters) counts until its activity closes. Work arriving after its deadline is recorded as late, and one posting is one late item, whatever it satisfies; two or more late items across the term cost participation Honors. If you add the course after a deadline has passed, that item is due one week after you add and is not late; Digest group placement I handle directly. Each activity has one close, after which nothing is accepted, and every close is at the start of class, 1:15 pm, on the day named, whether or not class meets that day: the syllabus quiz, the Tech Digest, and the SIAR block (prep set, practice problems, and both quiz parts) at Session 9, Wednesday, February 10; the first annotation set at Session 3, Wednesday, January 20 (Monday, January 25, for a student who adds after January 13); every other annotation set two weeks after its session, or at the start of class on Monday, March 15, if that would fall in spring break; a circle draft or letters on the unit's memo date. The memo is different: accepted up to one week late, it then cannot earn Honors Pass and is not counted as a late item; it passes if it meets every rubric item, receives notice and one cure due a week later if it misses any, and is not met if it is not received within the week. Circle drafts are due at the start of the session before your letters date and letters at the start of the letters date; circles meet within the week that follows (Unit 2 meets in class at Session 14). Deadline accommodations are raised at least two weeks ahead where possible. I aim to return memo feedback within about two weeks of the memo date.

Course Policies

Attendance. To pass, attend at least 22 of our 26 sessions. Sessions held before you added count as absences under this policy. Your first two absences are automatically excused. Your third and fourth must be made up within two weeks of the absence, which is how I excuse them: watch the recording and post a short synthesis to the Session Make-Up Board under Discussions, titled with the session number; where no recording exists, or the session had no reading, agree a short account with me and post it to the same board instead. Missing a SIAR session leaves SIAR work as well: after Session 6, complete the practice problems on your own, and post the synthesis only if it is your third or fourth absence; after Session 8, taking both quiz parts on your own before they close is that session's make-up. No other documentation is needed. An absence not made up within that window is unexcused, and an unexcused absence, or a fifth absence of any kind, means the requirement is not met; my aim is to notify you as you approach it, and if it is not met I will tell you in writing when classes end, before grades are submitted. Arrival after 1:20 pm is tardy; a pattern of more than four tardies will be raised with you in writing, after which each further tardy counts as an absence. An absence charged for unauthorized device use, for leaving early without telling me beforehand, or for a tardy after that notice is an ordinary absence, made up like any other. Extended illness or crisis belongs in the accommodation process: contact me and the Dean of Students early.



The policy at a glance; the paragraph above controls.

Devices and conduct. Devices are limited to the casebook, your notes, Canvas, and in-class materials that I assign; phones are put away absent an accommodation. Unauthorized use includes chatting with classmates or using AI tools during class, even about the course. Unauthorized device use, or leaving early without telling me beforehand, counts as an absence for that session. Significant or repeated disruption may result in a Low Pass. Conduct beyond that goes to the Honor Code process rather than the grade.

Low Pass and Fail. Missing any one of the five requirements is a Fail. Low Pass is reserved for significant or repeated disruption.

Generative AI and citation integrity. These rules govern every use of generative AI here. Generative AI means any system that produces text in response to a conversation or prompt in ordinary language, or that continues text you are typing. On your own written work (the memo and the Tech Digest document) you may use AI to plan, outline, or refine what you are writing yourself, never to replace your judgment, and you answer for every error it introduces. Work not named here (the syllabus quiz, the Digest reflection, Make-Up Board posts, and circle drafts) follows the memo rule. You may not use it at all in annotation sets (the first set included), in peer feedback, or anywhere in the SIAR block (prep set, practice problems, and both quiz parts); doing so violates the Honor Code. Ordinary spelling and grammar checking is always permitted and is not generative AI use; drafting features such as Smart Compose or "Help me write" are generative AI and are barred wherever AI is barred; because they write text rather than plan, outline, or refine yours, they are barred on the memo too. The memo, including any cure, carries the acknowledgment and certification in the Memo Coversheet & Certification: Statement 1, naming what you used AI for, how you verified it, and a link to the engagement or a dated export or short description where a tool gives no link, or Statement 2, stating that you used none. Other submissions need no acknowledgment unless I ask. Omitting the acknowledgment inadvertently is a rubric miss and goes to the cure cycle; misrepresenting your use of AI is an Honor Code matter. An honest misreading of something you read is a good-faith error, fixed in the cure cycle. Fabricating authority, or citing a source you never read, is a citation-integrity

violation: until resolved with me and, where required, through the Honor Code process, it blocks a pass. You certify on each memo that you read what you cite.

Religious observance. If you need an accommodation for a religious observance, for a class meeting or a deadline, talk to me as early as you can; you do not need to justify the observance itself.

Reasonable accommodations. I am dedicated to ensuring that our classroom is a safe and inclusive environment for everyone. If you encounter any disability-related barriers in this course, please reach out to the Wake Forest University Center for Learning, Access, & Student Success (CLASS) at 118 Reynolda Hall. You can contact them at 336-758-5929, visit their website at https://class.wfu.edu, or email class@wfu.edu. It's important to seek accommodations as early as possible, as retroactive accommodations cannot be provided. For questions about Law School-specific accommodations or other supportive measures, including those related to language barriers, please consult Chapter 8 of the Student Handbook or contact Assistant Dean for Student Affairs, Branden Nicholson, at lawstudentaffairs@wfu.edu.

Recording our In-person Class Sessions. I record all class sessions. Per Law School practice, recordings are published automatically to our Canvas course page and retained under the Law School's retention policy. One practical note: the recording depends on me wearing the mic; reminders at the start of class are welcome. Some sessions cover sensitive topics; to keep those discussions robust, I may ask IT not to post a particular recording. All recordings are available for viewing only by students enrolled in the class via Canvas. Unless you have an excused absence, watching the class recording is not a substitute for class attendance. The recordings are not available for download. No other recording, including by students, is permitted without my express permission.

Permission to Use Class Videos. Students have permission to access class recordings solely for the purpose of participating in the course. The recordings may not be used by any person other than a student enrolled in the course or for any purpose other than to participate in the course. Students are prohibited from downloading, copying, posting online, or otherwise distributing any portion of the recordings for any purpose. Doing so without my express permission would violate the Student Code of Conduct, which would have to be reported to the bar for your bar admission application. Students should understand that technical problems or human error may prevent successful recording. Therefore, if you are unable to make it to a particular class, please be sure to ask a fellow classmate to take notes for you. By enrollment in this course, each student consents to the recording and use described above.

Working with me. I answer email in batches, usually Tuesday and Friday mornings; nudge me after two batch days, or mark true emergencies URGENT. I teach in discussion, so come having read and ready to engage. For personal and wellbeing matters, I will point you to the Dean of Students and the counseling center.

Schedule of Readings

All readings are in Grimmelmann (16th ed.). ★ marks a problem for in-depth discussion and cold-calling; PORTFOLIO marks a unit's memo problem; ▶ marks a session with a short video to watch before class. This schedule may change at my discretion; portfolio dates move only with written notice on Canvas.

#	Date	Topic	Reading (Grimmelmann 16th ed.)	Milestones
UNIT 1: FOUNDATIONS				
1	Mon., Jan. 11	Course Introduction; Technical Primer: Computers	Syllabus; pp. 13-24	**Syllabus quiz by Sun., Jan. 17**
2	Wed., Jan. 13	Technical Primer: Internet and Cryptography	pp. 25-43	**Digest primer due (first set); Digest groups by Sun., Jan. 17**

#	Date	Topic	Reading (Grimmelmann 16th ed.)	Milestones
3	Wed., Jan. 20	Theory: Code as Law; Generativity	pp. 44-53 (Lessig; Zittrain)	**First set closes at 1:15 pm**
UNIT 2: JURISDICTION				
4	Mon., Jan. 25	Cyberspace: Is the Internet a Separate Place?	pp. 55-71 (Barlow). ★ Dead Aim	**First set due for late adds**
5	Wed., Jan. 27	Jurisdictional Conflicts: International Enforcement	pp. 72-85, 87-88 (Gutnick; eSafety v. X). ★ SeaHaven · PORTFOLIO	**Digest briefs; SeaHaven**
SIAR BLOCK: HOW GOVERNMENT MAKES INTERNET LAW				
6	Mon., Feb. 1	SIAR A: How Government Works as a Machine	COPPA packet, on Canvas (SIAR prep set due); in-class module	**Sign-up closes; Digest reflection due**
7	Wed., Feb. 3	SIAR B: Children's Privacy	pp. 434-460 (Epic Games, read closely; California AADC, skim), with the COPPA packet in hand	
8	Mon., Feb. 8	SIAR C: The SIAR Quiz	No reading; in-class quiz	
UNIT 3: CONTENT MODERATION				
9	Wed., Feb. 10	Content Moderation: Platform Policies	pp. 187-214 (Klonick; platform policies). ★ CurrenC · PORTFOLIO	**Quiz, Digest, and SIAR block close at 1:15 pm**
10	Mon., Feb. 15	Intermediary Liability	pp. 215-228 (Twitter v. Taamneh)	
11	Wed., Feb. 17	Section 230: Foundations	pp. 229-246 (Zeran; Jones v. Dirty World)	
12	Mon., Feb. 22	▶ Section 230: Scope and Limits	pp. 247-252 (Doe v. MySpace; FOSTA; TAKE IT DOWN)	
13	Wed., Feb. 24	▶ Section 230: Modern Controversies	pp. 253-272 (Gonzalez; Anderson v. TikTok; DSA)	**U2 drafts due**
14	Mon., Mar. 1	Workshop: Circles and Open Questions	No reading. Unit 2 circles meet; open questions	**U2 letters; circles meet**
UNIT 4: PRIVACY				
15	Wed., Mar. 3	Consumer Privacy: Tracking, Standing, and Harm	pp. 388-405 (TransUnion v. Ramirez)	
SPRING BREAK · MARCH 8-12 · NO CLASS				
16	Mon., Mar. 15	Consumer Privacy: FTC and California Law	pp. 406-420 (Snapchat; CPRA). ★ Cookie Monster · PORTFOLIO	
17	Wed., Mar. 17	▶ Privacy Law in the European Union	pp. 420-433 (GDPR; Google Spain)	**U3 drafts; U2 memo due**
FEDERALISM				
18	Mon., Mar. 22	Federalism and the Dormant Commerce Clause	Federalism module; pp. 112-122 (Facebook BIPA; Wayfair)	**U3 letters due**
UNIT 5: PLATFORM REGULATION				
19	Wed., Mar. 24	Platform Regulation: Marketplaces	pp. 675-692 (Erie v. Amazon; Airbnb). ★ 5thWheel · PORTFOLIO	**U4 drafts due**
20	Mon., Mar. 29	Platform Regulation: Antitrust Foundations	pp. 693-708 (United States v. Microsoft)	**U4 letters due**
21	Wed., Mar. 31	▶ Platform Regulation: Modern Antitrust	pp. 709-716 (Epic v. Apple; DMA). ★ Google Maps	
22	Mon., Apr. 5	Platform Regulation: Network Neutrality	pp. 717-733 (Verizon v. FCC; Open Internet orders)	**U3 memo due**

#	Date	Topic	Reading (Grimmelmann 16th ed.)	Milestones
UNIT 6: BEYOND THE INTERNET				
23	Wed., Apr. 7	Defective Software and Algorithmic Accountability	pp. 735-750. ★ AI Confidential	**U5 drafts due**
24	Mon., Apr. 12	Virtual Property	pp. 751-777 (Kremen v. Cohen; Aleynikov)	**U4 memo; U5 letters due**
25	Wed., Apr. 14	Blockchains and Cryptocurrency	pp. 778-792 (Ulbricht; Munchee)	
26	Mon., Apr. 19	Synthesis Day	No reading	**U5 memo due**

Course documents

Each link opens the current version: the Circle Guide from the shared course folder, every other document from the course website. The syllabus is the master document and controls where documents differ.

Syllabus (this document). The master document; it controls where documents differ.

Circle Guide. How the portfolio works, from sign-up to circles, the Memo Rubric, the cure cycle, the CREAC template, and the Circle Letter form.

Memo Coversheet & Certification. The cover materials required with every memo.

Tech Digest Project. Instructions and deadlines, from the first session to the reflection due February 1.

Annotation Guide. What goes in an annotation set.

SIAR Module. The Session 6 module and the quiz instructions.

Course website. The course home page: next class, deadlines, and links to every course document; the Unit Circles page is linked from it.

Shared course folder. Where the Circle Guide lives, always the current version.

Canvas course. Modules, assignments, sign-ups, the Session Make-Up Board, and recordings.

DOCUMENT HISTORY

OPEN IN v21.3 (unresolved items; each resolves in a numbered revision):

- Part B rubric, circle caps, and Unit 5 timing (its cure falls in the exam period): set before January 11, when the scheme fixes.

v21.3 · Oct 20, 2026 · Course documents: the Canvas course link updated to the reset course (88399); no rule changed.

Earlier versions are kept by the professor; the version above is the one in force.